

		opposition no later than 9 court days prior to the continued hearing. No additional briefing will be considered. Temporary Restraining Order shall remain in effect until the next hearing. Clerk to give notice.
6	Truong vs. Nguyen 30-2025- 01537299-CU- RI-CJC	Demurrer to First Amended Complaint The demurrer to first amended complaint (FAC) of defendants Uy Nguyen, Teletron, Inc., Teletron Global, Inc., and Thanh Dang, is SUSTAINED with 10 days leave to amend. The entire FAC is uncertain. The court cannot discern which plaintiff is suing which defendant for which cause of action. The court cannot determine whether the alleged conduct falls within the purview of 47 U.S.C. section 230. The FAC does not include sufficient detail of dates of alleged conduct for purposes of testing whether plaintiffs have complied with the statutes of limitation. The court cannot determine what images were used, when, which statements were published, when, which defendant hired or supervised Tran or which plaintiff suffered injury, or what that injury is. The court cannot determine whether the information was streamed on the internet or broadcast on television or both. These are but a few of the uncertainties. The entire pleading will likely need to be re-drafted from the ground up to survive future attack. If plaintiffs choose to amend, plaintiffs are ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
7	Zheng vs. Zheng 30-2025- 01488963-CU- NP-CJC	The instant case is one for malicious prosecution, which alleges a previous case for malicious prosecution over a domestic violence restraining order (DVRO) was malicious. Plaintiffs Gene Zheng and May Zheng, and Defendant Jack Zhen Zheng, are siblings. Defendant Nigel Burns is an attorney whose firm represented Jack in the first malicious prosecution action. Defendant Nigel Burns's Demurrer to Complaint Defendants Nigel Burns and The Law Offices of Nigel Burns' Demurrer to Plaintiff's Complaint is OVERRULED.

	To prevail on a cause of action for malicious prosecution, "the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff." (<i>Detrick v. Shimada</i> (2026) 120 Cal.App.5th 170, 176 [citation omitted].) Defendants demur on the ground Plaintiffs fail to plead a favorable termination as the action was dismissed following Defendants' request for dismissal with prejudice. "A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury." (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) Plaintiffs have sufficiently alleged Defendants filed a voluntary dismissal with prejudice following Plaintiffs' filing of a motion for summary judgment (Compl. ¶ 17), which may be presumed to be a favorable termination on the merits. Whether Defendants are able to rebut this presumption is not an appropriate consideration at the demurrer stage. Defendants are ORDERED to file an answer within 5 days. Defendant Nigel Burns's Special Motion to Strike Complaint and Request Award of Attorney Fees and Costs Defendants Nigel Burns and The Law Offices of Nigel Burns' Special Motion to Strike the Complaint (Anti-SLAPP) is DENIED. <u>Plaintiffs' request for judicial notice</u> Plaintiffs' request for judicial notice is GRANTED. However, the Court is precluded from taking judicial notice of the truth of facts asserted in the documents other than orders, findings of fact and conclusions of law, and judgments. <u>Legal standard</u> "Litigation of an anti-SLAPP motion involves a two-step process. First, 'the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged.' Second, for each claim that does arise from protected activity, the plaintiff must show the claim has 'at least 'minimal merit.' If the plaintiff cannot make this showing, the court will strike the claim." (<i>Bonni v. St.</i>
--	---

Joseph Health System (2021) 11 Cal.5th 995, 1009 [cleaned up].)

Protected activity

As Plaintiffs concede a malicious prosecution claim arises from protected activity (Opp. at 4:3-4), the first prong is satisfied.

Probability of prevailing

To prevail on a cause of action for malicious prosecution, "the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff." (*Detrick v. Shimada* (2026) 120 Cal.App.5th 170, 176 [citation omitted].)

Probable cause

"The decision on the probable cause element is normally made by the court as a matter of law based on an objective assessment of the merits of the underlying action. [T]he probable cause element calls on the trial court to make an objective determination of the 'reasonableness' of the defendant's conduct, i.e., to determine whether, on the basis of the facts known to the defendant, the institution of the prior action was legally tenable. A claim is unsupported by probable cause if any reasonable attorney would agree that it is totally and completely without merit. The legal question of probable cause turns 'not [on] the defendant's subjective belief in the legal tenability of his claim, but rather the state of the defendant's knowledge of the facts on which his claim was based. (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 794 [cleaned up].

Defendants do not dispute they were aware Jack's claim was based on Gene and May's request for a DVRO. Defendants also do not dispute the authority provided by Plaintiffs, including *S.A. v. Maiden* (2014) 229 Cal.App.4th 27, addressed whether a malicious prosecution action could be predicated on a request for a DVRO or when presented with that authority and others, Defendants relied only a case decided over 25 years before *S.A. Maiden*. (Lee Decl., ¶¶ 9-12, Exs. G, H, J, K.) Defendants do not demonstrate any other facts known to Defendants that would render Jack's claim otherwise legally tenable.

		Moreover, as Jack brought a malicious prosecution action against Gene and May in the underlying action, he too was required to show Gene and May's DVRO was "initiated or maintained both without probable cause and with malice." (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176 [citation omitted].) Plaintiffs contend they provided Defendants with evidence supporting probable cause for Gene and May's request for a DVRO, including sworn deposition, declaration, and court testimony from a third-party who called 911 regarding the alleged underlying altercation and testimony from May and Jack. Defendants do not provide conflicting evidence or demonstrate whether any other facts known to Defendants cast doubt on Plaintiffs' showing of probable cause through these documents and testimony. The Court finds Jack's prior action i.e., his malicious prosecution action based on Gene and May's DVRO, was not based on probable cause based on an objective assessment in light of the relevant legal authority and Defendants' knowledge of the facts on which Jack's claim was based. <u>Malice</u> Malice "relates to the subjective intent or purpose with which the defendant acted in initiating the prior action," and requires "actual ill will or some improper ulterior motive," which "may range anywhere from open hostility to indifference." (<i>Downey Venture v. LMI Ins. Co.</i> (1998) 66 Cal.App.4th 478, 494.) "The absence of probable cause alone does not establish malice. However, '[m]alice may . . . be inferred from the facts establishing lack of probable cause.' The attorney's subjective belief in the tenability of the claim, or the lack of such belief—while irrelevant to probable cause—is 'clearly . . . relevant to the question of malice.'" (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 223 [cleaned up].) While evidence of an attorney's possible negligence in conducting factual research is not enough on its own to show malice, "malice can be inferred when a party <i>continues</i> to prosecute an action after becoming aware that the action lacks probable cause." (<i>Daniels, supra</i>, 182 Cal.App.4th at pp. 225-226 [citation omitted].) Plaintiffs contend they provided sworn deposition, declaration, and court testimony to Defendants
--	--	--

		demonstrating allegations of Jack’s malicious prosecution action were disproved (i.e., that the DVRO was brought with probable cause) and Defendants nevertheless continued with the litigation. Defendants do not provide any evidence to challenge the resulting inference, including, for example, findings from their own investigation and research that revealed facts controverting Plaintiffs’ evidence or called into question the credibility of Plaintiffs’ evidence. The Court finds Plaintiffs have established malice. <u>Favorable termination</u> “A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury. This is because ‘[a] dismissal for failure to prosecute . . . does reflect on the merits of the action [and in favor of the defendant] The reflection arises from the natural assumption that one does not simply abandon a meritorious action once instituted.’” (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) On 12/24/2020, Plaintiffs filed a motion for summary judgment (MSJ) in the underlying action on the single ground the action was legally barred. (Lee Decl., ¶ 14, RJN Ex. 4.) On 2/17/2021, before that motion was heard and before any opposition to it was filed Plaintiffs filed a Request for Dismissal, which was entered the same day. (Lee Decl., ¶ 14, RJN Ex. 5.) Defendants offer no evidence to rebut the presumption the voluntary dismissal was a favorable termination on the merits such as evidence demonstrating the dismissal was based on a technical or procedural ground or was otherwise unrelated to the merits of the case. That Plaintiffs rely on the 6/12/2023 dismissal of the remaining cross-complaint to establish accrual of their cause of action, while relying on the 2/17/2021 dismissal of the complaint as proof of a merits-based termination is not inconsistent. The dismissal was a favorable termination for purposes of establishing the merits of their malicious prosecution cause of action. Relying on the subsequent dismissal of the cross-complaint for procedural purposes does not negate or otherwise impact that showing.
--	--	---

	Plaintiffs have demonstrated their malicious prosecution cause of action has at least “minimal merit.” Defendants are ORDERED to file an answer within 5 days. Defendant Jack Zhen Zheng’s Special Motion to Strike Defendant Jack Zhen Zheng’s Special Motion to Strike the Complaint (Anti-SLAPP) is DENIED. <u>Plaintiffs’ request for judicial notice</u> Plaintiffs’ request for judicial notice is GRANTED. <u>Legal standard</u> “Litigation of an anti-SLAPP motion involves a two-step process. First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has ‘at least ‘minimal merit.’ If the plaintiff cannot make this showing, the court will strike the claim.” (<i>Bonni v. St. Joseph Health System</i> (2021) 11 Cal.5th 995, 1009 [cleaned up].) <u>Protected activity</u> As Plaintiffs concede a malicious prosecution claim arises from protected activity (Opp. at 4:3-4), the first prong is satisfied. <u>Probability of prevailing</u> To prevail on a cause of action for malicious prosecution, “the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff.” (<i>Detrick v. Shimada</i> (2026) 120 Cal.App.5th 170, 176 [citation omitted].) <u>Probable cause</u> “Probable cause may be established by the defendants in a malicious institution proceeding when they prove that they have in good faith consulted a lawyer, have stated all the facts to him, have been advised by the lawyer that they have a good cause of action and have honestly acted upon the advice of the lawyer.” (<i>Palmer v. Zaklama</i> (2003) 109 Cal.App.4th 1367, 1383 [citation omitted].) “Conversely, if the defendant acted in bad faith or
--	---

		withheld facts from counsel he or she knew or should have known would have defeated the cause of action, probable cause is not established.” [C]ounsel’s advice must be sought in good faith [citation] and “. . . not as a mere cloak to protect one against a suit for malicious prosecution. The burden of proving good faith reliance on the advice of counsel falls on the party asserting the defense. (<i>Id.</i> at pp. 1383-1384 [cleaned up].) In his declaration, Jack states only, “On September 29, 2017, after I had defeated the DVRO’s sought by my siblings May and Gene, my then-attorney Nigel Burns, filed a lawsuit for me for Wrongful Use of Civil Proceedings. I trusted that Mr. Burns knew the law. Had he told me that the lawsuit was not allowed, I would not have filed it.” (Zheng Decl., ¶ 3.) With respect to the legal authority regarding the viability of Jack’s malicious prosecution cause of action, Jack contends, “it was Mr. Burns’ responsibility to advise Jack as to how to proceed forward, including if filing a dismissal was necessary, and when to file.” (Reply at 9:10-11.) Jack further contends as “Plaintiffs’ Complaint is solely premised on the alleged prosecution of a suit that was legally barred because of the nature of proceedings forming the basis of the 169 Action; the precise ‘who, what, when, where, why’ of the events of April 12, 2017, are immaterial here. The only material fact is that the 169 Action was based upon Plaintiffs’ failed restraining orders. This is a fact that Jack’s attorney, Nigel Burns, clearly possessed when he authored and filed the complaint for the 169 Action.” (Reply at 7:15-20.) In the context of this anti-SLAPP motion, however, the Court is to analyze whether Plaintiffs’ cause of action for malicious prosecution has minimal merit. Part of that analysis is determining whether a prior action was “initiated or maintained both without probable cause” (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176.) Accordingly, the Court must look at whether Jack’s prior action for malicious prosecution was initiated or maintained without probable cause. In bringing a malicious prosecution action against Gene and May, Jack too was therefore required to show Gene and May’s DVRO was “initiated or maintained both without probable cause and with malice.” (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176 [citation omitted].) Accordingly, contrary to Jack’s contentions, details
--	--	---

		regarding that underlying action are relevant to the analysis. "The burden of proving good faith reliance on the advice of counsel falls on the party asserting the defense." (<i>Palmer, supra</i>, at pp. 1383-1384 [cleaned up].) While on reply Jack contends his counsel "had all of the relevant information," (Reply at 10:5), Jack provides no evidence, including in his declaration, to demonstrate he stated all the facts to his counsel at the time and was thereafter advised he had a good cause of action. As Jack has not met his burden of proving good faith reliance on counsel, the Court finds he has not established probable cause. <u>Malice</u> Malice "relates to the subjective intent or purpose with which the defendant acted in initiating the prior action," and requires "actual ill will or some improper ulterior motive," which "may range anywhere from open hostility to indifference." (<i>Downey Venture v. LMI Ins. Co.</i> (1998) 66 Cal.App.4th 478, 494.) "The absence of probable cause alone does not establish malice." (<i>Maletti v. Wickers</i> (2022) 82 Cal.App.5th 181, 223 [citation omitted].) "Since parties rarely admit an improper motive, malice is usually proven by circumstantial evidence and inferences drawn from the evidence." (<i>Daniels v. Robbins</i> (2010) 182 Cal.App.4th 204, 225 [citation omitted].) "Additional proof of malice can consist of evidence a party <i>knowingly</i> brings an action without probable cause." (<i>Id.</i> at p. 226 [citation omitted; emphasis in original].) Plaintiffs rely on various evidence they contend demonstrate Gene and May had probable cause for their DVRO, including sworn deposition, declaration, and court testimony from a third-party who called 911 regarding the alleged underlying altercation and testimony from May and Jack. While Plaintiffs have presented evidence sufficient to infer Jack knowingly brought this action without probable cause, Jack does not present any conflicting evidence or any other facts casting doubt on the inference drawn from Plaintiffs' evidence. The Court finds Plaintiffs have established malice. <u>Favorable termination</u>
--	--	---

		"A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury. This is because '[a] dismissal for failure to prosecute . . . does reflect on the merits of the action [and in favor of the defendant] The reflection arises from the natural assumption that one does not simply abandon a meritorious action once instituted.'" (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) On 12/24/2020, Plaintiffs filed a motion for summary judgment (MSJ) in the underlying action on the single ground the action was legally barred. (Lee Decl., ¶ 14, RJN Ex. 4.) On 2/17/2021, before that motion was heard and before any opposition to it was filed Plaintiffs filed a Request for Dismissal, which was entered the same day. (Lee Decl., ¶ 14, RJN Ex. 5.) Jack's declaration contains no discussion of the dismissal including any indication as to why he voluntarily dismissed the action, while the declaration of Jack's counsel states only, "On February 17, 2021, prior to his deadline to oppose the MSJ, and before the Court issued any ruling on the merits of the 169 case, Jack voluntarily dismissed his operative Malicious Prosecution complaint with prejudice." (Smith Decl., ¶ 4.) As such, Jack offers no evidence to rebut the presumption the voluntary dismissal was a favorable termination on the merits such as evidence demonstrating the dismissal was based on a technical or procedural ground or was otherwise unrelated to the merits of the case. Plaintiffs have demonstrated their malicious prosecution cause of action has at least "minimal merit." Jack is ORDERED to file an answer within 5 days. Clerk to give notice.
8	V. Lynn Hodge, as Trustee of the Plaza del Sol Real Estate Trust Under Declaration of Trust Dated February 9, 1996, as Amended, A California Revocable Trust	Motion for Summary Judgment and/or Adjudication Off calendar – case settled.